

Chapter#03. Rights and Responsibilities/Duties of a Citizen in a State

Course Outlines:

- A. Define the terms “Rights” and “Duties”
 - B. Differentiate between Rights and Duties
 - C. Interdependence of Rights and Duties
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A. Rights:

Rights refer to a set of legal, social, or ethical principles of freedom or entitlement that individuals possess. These entitlements are typically granted to people based on their status as human beings or as members of a particular group, society, or nation. Rights can encompass a wide range of areas, including civil, political, economic, social, and cultural aspects.

Types of Rights:

Rights, in any society, are of two types:

1. Moral Rights:

Moral rights of an individual in a society generally refer to the ethical principles and entitlements that are considered inherent to every person by virtue of their humanity. These rights are often viewed as fundamental and essential for the well-being and dignity of individuals within a community. The concept of moral rights is closely tied to the broader field of human rights, which includes legal rights as well.

Here are some key moral rights that are commonly recognized in discussions about individuals in society:

- **Right to Life:** Every individual has the inherent right to life, and society is generally expected to protect and respect this right.
- **Dignity and Respect:** Individuals have the right to be treated with dignity and respect. This includes protection against degrading treatment and the right to be recognized as a person before the law.
- **Freedom and Liberty:** People have the right to freedom and liberty, allowing them to make choices and pursue their goals within the boundaries of societal norms and legal regulations.
- **Equality:** The principle of equality asserts that all individuals should be treated equally before the law and should have equal opportunities regardless of factors such as race, gender, religion, or socioeconomic status.

- **Freedom of Thought and Expression:** Individuals have the right to freedom of thought and expression, allowing them to express their ideas, opinions, and beliefs within the limits of respect for others and societal values.
- **Privacy:** Individuals have a right to privacy, which encompasses the protection of personal information, living space, and freedom from unwarranted intrusion.
- **Freedom of Association:** People have the right to associate with others, form groups, and engage in activities that contribute to their personal and collective well-being.
- **Cultural Rights:** This includes the right to participate in one's cultural community, practice one's culture, and enjoy the benefits of one's cultural heritage.
- **Education:** Individuals have the right to access education, which is crucial for personal development and empowerment.
- **Work and Just Conditions:** Individuals have the right to work in just and favorable conditions, including fair wages, reasonable working hours, and safe working environments.

2. Legal Rights:

Legal rights are the rights recognized by the government through laws and the constitution. Every citizen must follow these rights, and if someone breaks them, the courts can declare them a criminal and impose penalties. The government officially approves these rights, and people who violate them face legal consequences.

Legal rights are further divided into two types.

i) Social Rights:

- **Right of Life.** Every individual has the fundamental right to life, and the state has a responsibility to protect this right. Suicide is legally prohibited.
- **Right of Shelter.** All individuals have the right to arrange accommodations or dwellings within the state. This right can only be restricted in cases of mutiny or revolt.
- **Right of Property.** Every individual has the right to personal property, and the state is obligated to allow individuals to have and dispose of their property within legal bounds.
- **Right of Having a Family.** Individuals have the right to marry and have a family according to their will, within the bounds of religious constraints. Family matters are considered private, and no one can intervene without just cause.
- **Right of Trade.** Individuals have the right to engage in economic activities for their livelihood. The state is obligated to provide job opportunities or alternative means of earning a living while regulating economic activities to maintain national economic balance.
- **Right of Religion.** Individuals have the right to choose their religion and belief, with the state not interfering as long as it doesn't conflict with national objectives or impede the practices of others.

- **Right of Speech and Writing.** In a democratic state, individuals have the right to express their views verbally or in writing. This freedom of expression is crucial for developing an effective public opinion and holding the government accountable.
- **Right of Constituting Unions/Associates.** People have the right to form associations for common objectives, as long as they do not pose a threat to national integrity or hinder progress.
- **Right of Language & Culture.** Individuals have the right to protect their language and cultural norms, even if they belong to a minority with distinct characteristics.
- **Right of Education.** Access to education is a fundamental right, and the state is responsible for providing this opportunity to all individuals without charge.
- **Right of Free Movement.** Citizens have the right to move freely within the state, and no one can be arrested without proper justification.
- **Right of Equality.** Every individual is considered equal socially and economically in the eyes of the law, regardless of factors like occupation, family, community, or tribe.

ii) Political Rights

As social rights are very important for civilized life of the citizens, similarly their political rights play an important role in the development of progressive and democratic environment in political sphere of life. Political rights are given only to the citizens. Aliens are deprived of such rights. Following political rights are granted to the citizens:

- **Right of Voting.** The "right of voting" in civics means the ability of eligible citizens to participate in elections by casting their votes to choose leaders and make decisions about laws and policies. It's a key aspect of democracy, allowing people to have a say in how their government is run.
- **Right of Representation.** Along with the right of voting, individuals of the state are also granted right of representation according to which they can contest election for public representation.
- **Right of official status.** All citizens qualified for government job, irrespective of their color, cast and creed, if otherwise possess required and prescribed qualification (academic and professional) for that job.
- **Right of criticism and opinion making.** Every individual of the state, has automatically, been given a right to put up his opinion against any government's wrong policy or mistake, in writing or verbally, if he considers such policy against national interest. For this purpose, press, radio, T.V and processions or meetings can be opted as a means of expressions. But it is citizens' duty to use this right for constructive purpose only.
- **Right of establishing or joining political Parties.** Political parties have to play a very important role in a democratic form of government. They also provide the foundation of a systematic political order in a state and trained its citizens. Hence no country can claim to be democratic state unless it gives its citizens the right of organizing political parties.

- **Right of request against injustice.** Every citizen has a right to put up an application to government against any injustice or discrimination imposed by any governmental agency against him, so that he can attract the attention of the government for the legal remedy.

>**Duties/Responsibilities:**

In civics, the term "duty" refers to "an obligation or responsibility that individuals have as members of a community, society, or nation". These duties are often associated with citizenship and are considered essential for the proper functioning of a democratic society. Civic duties are typically outlined in laws, constitutions, or ethical principles, and they vary from country to country. Common civic duties include obeying the law, paying taxes, serving on a jury, and participating in the democratic process through activities such as voting and staying informed about public issues. Fulfilling civic duties is seen as a way for individuals to contribute to the collective well-being and maintain the stability and order of a society.

>**Duties:**

Obligation: Duties are often perceived as obligations or tasks that one is required to fulfill. They may be legally or morally binding.

Imposed by External Factors: Duties are frequently imposed by external factors such as laws, regulations, or societal expectations.

>**Responsibilities:**

Accountability: Responsibilities are linked to accountability and the expectation that individuals will carry out certain tasks or actions.

Voluntary or Assigned: While responsibilities can also be assigned, they may be more voluntarily undertaken. Individuals may take on responsibilities based on their roles or personal commitments.

Broader Scope: Responsibilities can have a broader scope and may include both duties and additional tasks that contribute to the effective functioning of a role or a system.

Duties/Responsibilities of a citizen:

The citizens are obliged to pay certain duties against the rights they have been guaranteed. None can be a good citizen without performing duties. Following are some important duties of the citizens:

- **Loyalty to the Country.** Every citizen should be devoted to their country, cooperating with the government and never engaging in actions that betray the nation. They should be ready to sacrifice anything, even their lives, for the country.
- **Obeying Laws.** It is both a moral and legal duty for citizens to obey the rules and regulations set by the government.

- **Paying Taxes.** Citizens must fulfill their duty by honestly paying all the taxes imposed by the government.
- **Using the right of vote properly.** To use one's right of voting properly, is among the basic responsibilities of an individual. One should vote for him who really deserves it on the basis of his qualities.
- **Social/ community Service.** Every citizen of a democratic country is, morally bound to do social services to contribute in the betterment of the society.
- **Education.** Every citizen is obligated, both morally and legally, to pursue education for themselves and provide educational opportunities for their children. Education is crucial for being a good citizen and maintaining a healthy society.
- **National Interests.** Individuals should prioritize national interests over their personal interests. Activities that go against the nation's well-being should be avoided.
- **Productive Work.** Citizens should avoid being idle and burdensome to the nation. Remaining active and engaged in productive activities is essential for personal growth and contributing to the nation's well-being.
- **Participation in Civic Life.** Actively participating in civic life includes staying informed about current events, engaging in community activities, and contributing to discussions on important issues. Informed and engaged citizens are essential for a healthy democracy.
- **Civic Education.** Continuously educating oneself about civic rights and responsibilities is crucial. Being aware of one's rights and obligations helps citizens make informed decisions and actively participate in society.

B. Differentiate between Rights and Duties:

Rights and duties are two interconnected concepts in ethics, law, and governance, but they differ in their nature and implications. Here's a brief differentiation:

- Rights** refer to legally or morally recognized entitlements that individuals possess, encompassing freedoms, privileges, or claims protected by laws or ethical principles. In contrast, **duties** represent moral or legal obligations that individuals are bound to fulfill.
- Rights** are inherent to individuals and exist independently of social or legal constructs, while **duties** are seen as obligatory actions expected for the well-being of society or specific relationships.
- Rights** can derive from legal frameworks or moral principles, focusing on protecting individuals from interference or harm. On the other hand, **duties** can stem from implicit agreements within a community or specific tasks outlined in rules or laws, emphasizing the collective responsibilities individuals have towards others or society.
- Rights** are often legally protected, and individuals can seek legal remedies if violated, the enforcement of **duties** may vary, ranging from legal enforcement to societal expectations and ethical considerations.

C. Interdependence of Rights and Duties

The interdependence of rights and duties is a concept that emphasizes the reciprocal relationship between what individuals are entitled to (rights) and what they are expected to do (duties) within a society. In simple terms, when you have rights, you also have responsibilities. These responsibilities help make sure everyone's rights are respected and that society runs smoothly. It's like a give-and-take relationship: you get certain freedoms, but you also have to do your part to respect others and contribute positively to the community.

Explanation:

The relationship between rights and duties is like a two-way street that cannot be separated. They are essential to each other and depend on one another. You can't impose duties on people without giving them certain rights, and when individuals have rights, there are always associated duties and responsibilities that come with them—both morally and legally. It's a mutual thing; the rights of one person often mean duties for others and vice versa. The key is balance. In a society where there's an imbalance between rights and duties, problems like tyranny, cruelty, and injustice can arise. To maintain a fair and just community, individuals need to willingly take on certain duties along with enjoying their rights. This way, everyone's rights are preserved, and the overall well-being of the society is upheld.